

**COMMITTEE AMENDMENT**  
HOUSE OF REPRESENTATIVES  
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend SB1325 \_\_\_\_\_  
Of the printed Bill  
Page \_\_\_\_\_ Section \_\_\_\_\_ Lines \_\_\_\_\_  
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

**AMEND TITLE TO CONFORM TO AMENDMENTS**

Adopted: \_\_\_\_\_

Amendment submitted by: Toni Hasenbeck

\_\_\_\_\_  
Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

PROPOSED  
COMMITTEE SUBSTITUTE  
FOR ENGROSSED  
SENATE BILL NO. 1325

By: Coleman of the Senate

and

Hasenbeck and Hefner of the  
House

PROPOSED COMMITTEE SUBSTITUTE

[ Protection from Domestic Abuse Act - victim  
protective orders - Global Positioning System  
device - costs - monitoring - effective date ]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 22 O.S. 2021, Section 60.17, is  
amended to read as follows:

Section 60.17. A. The court shall consider the safety of any  
and all alleged victims of domestic violence, stalking, harassment,  
sexual assault, or forcible sodomy where the defendant is alleged to  
have violated a protective order, committed domestic assault and

1 battery, stalked, sexually assaulted, or forcibly sodomized the  
2 alleged victim or victims prior to the release of the alleged  
3 defendant from custody on bond. The court, after consideration and  
4 to ensure the safety of the alleged victim or victims, may issue an  
5 emergency protective order pursuant to the Protection from Domestic  
6 Abuse Act. The court may also issue to the alleged victim or  
7 victims an order restraining the alleged defendant from any activity  
8 or action from which ~~they~~ he or she may be restrained under the  
9 Protection from Domestic Abuse Act. The court shall not consider a  
10 "no contact order as condition of bond" as a factor when determining  
11 whether the petitioner is eligible for relief. The protective order  
12 shall remain in effect until either a plea has been accepted,  
13 sentencing has occurred in the case, the case has been dismissed, or  
14 until further order of the court dismissing the protective order.  
15 In conjunction with any protective order or restraining order  
16 authorized by this section, the court may order the defendant to use  
17 an active, real-time, twenty-four-hour Global Positioning System  
18 (GPS) monitoring device for such term as the court deems  
19 appropriate. Upon application of the victim, the court may  
20 authorize the victim to monitor the location of the defendant. Such  
21 monitoring by the victim shall be limited to the ability of the  
22 victim to make computer or cellular inquiries to determine if the  
23 defendant is within a specified distance of locations, excluding the  
24 residence or workplace of the defendant, or to receive a computer-

1 or a cellular-generated signal if the defendant comes within a  
2 specified distance of the victim. The court shall conduct an annual  
3 review of the monitoring order to determine if such order to monitor  
4 the location of the defendant is still necessary. Before the court  
5 orders the use of a GPS device, the court shall find that the  
6 defendant has a history that demonstrates an intent to commit  
7 violence against the victim, including, but not limited to, prior  
8 conviction for an offense under the Protection from Domestic Abuse  
9 Act or any other violent offense, or any other evidence that shows  
10 by a preponderance of the evidence that the defendant is likely to  
11 commit violence against the victim. The court may further order the  
12 defendant to pay costs and expenses related to the GPS device and  
13 monitoring, unless the court finds the defendant indigent, and in  
14 that event may order an alternative payment fund, county services  
15 fund, or other condition in lieu of payment, if available.

16 B. 1. In addition to monitoring by the victim pursuant to  
17 subsection A of this section, the court may order any defendant  
18 charged with domestic abuse by strangulation, domestic abuse with a  
19 dangerous or deadly weapon, or domestic abuse after a previous  
20 adjudication for domestic abuse to not be released on bail without  
21 GPS monitoring. The cost of the monitoring device and monitoring  
22 service shall be paid by the defendant at his or her own expense  
23 until the conclusion of the criminal case, unless the court finds  
24 the defendant indigent, and in that event may order an alternative

1 payment fund, county services fund, or other condition in lieu of  
2 payment, if available. The Department of Corrections shall provide  
3 a list of appropriate GPS monitoring programs or systems for use by  
4 the courts and provide minimum requirements for jurisdictions that  
5 do not use the programs on the list. At the conclusion of the  
6 criminal case, the court shall order the removal of the GPS  
7 monitoring device if the defendant is acquitted, is to be  
8 incarcerated, the case is dismissed or as determined by the court.

9 2. Upon application of the victim, the court may authorize the  
10 victim to monitor the location of the defendant by receiving a  
11 computer- or cellular-generated signal if the defendant is within a  
12 specified distance of the residence or workplace of the victim.

13 SECTION 2. This act shall become effective November 1, 2026.

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